Showing contexts for: **custody order** in Xxxxxxxxxxx vs Xxxxxxxxxxx on 21 April, 2026

Context size: Small | Current | Large | Larger

2. Learned trial Court vide impugned **order** declined to handover the **custody** of the minor child to wife and the minor was allowed to remain in the **custody** of father/ father/ respondent (hereinafter referred to as husband) and the wife had been allowed visitation rights to meet the minor at the house of the father on second and fourth f Sunday from 3:00 pm to 5:00 pm .

The he husband filed CWP No.24956 of 2023 in this Court against tthe he **order** Ex.PW1/2. Vide **order** dated 16.02.2024,, Ex. PW1/3 (Annexure P-2),, the **custody** of minor child was **ordered** to be handed over to mother mother. The husband challenged **order** dated 16.02.2024 Ex. PW1/3 by filing LPA i.e. LPA No.607 of 2024.

> under:-

> "if if second party/tenant has any problem regard regarding Food, cleaning of room, the First Party should be informed immediately."

On the basis of this condition, learned trial Court correctly came me to the conclusion that the wife is not staying in the said one room flat/premises as tenant but as a paying guest. Iff the wife herself is living as a paying guest, in **order** to get the **custody** of child, she has to prove that the landlord/in in-charge/ charge/ owner of the premises where she is staying as paying guest is ready to accommodate her child

along with care taker but there is no evidence to prove this fact. The mother other during the course of cross cross--

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15. In **order** to disentitle the mother from the **custody** of the child, the learned trial Court considered the answer of wife when she was asked whether she was habitual of taking drink, hookah or not and she answered the question in a positive way claiming that she was consuming hookah and going ing to pubs prior to her marriage and she further claimed that she is not consuming liquor and hookah after solemnization of marriage but learned trial Court Court considered the statement of RW1 Anan Anand d Nehural, colleague of the husband to support that even after marriage, the wife is taking liquor, liqu hookah and smoking and that she is habitual of messing up with the husband. Even if, for the sake of arguments, it is presumed that the wife is not consuming liquor, hookah or smoking, the wife in any case, failed to prove that there will be any care taker of the child child, in case, she has to stay late night for official or personal work and in whose hands, she can place the **custody** of child.